

19STCV42431 19STCV42431

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-08-11

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Case Number: 19STCV42431 Hearing Date: August 11, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/11/2026

CASE NUMBER: 19STCV42431

CASE NAME: RICHARD HARRIS vs PARK LA BREA LLC, et al.

MOVING PARTY: Plaintiff Richard Harris

OPPOSING PARTY: Specially appearing Defendant

Universal Protection Service LP

PROCEEDING: Motion to Reopen case and vacate dismissal

RULING SUMMARY: Plaintiff Richard Harris' Motion to Reopen and Vacate Dismissal is denied.

Background

On

November 26, 2019, Plaintiff Richard Harris ("Plaintiff") filed his Complaint against Defendants Park La Brea LLC and Allied Universal, alleging one cause of action for Premises Liability.

Plaintiff

alleges that, on November 30, 2017 at Park La Brea's premises, he was forcibly handcuffed by Allied Universal.

Allied

Universal responded as Universal Protection Service, LP ("UPS").

On

January 31, 2024, UPS' Motion for Terminating Sanctions was granted. The Court ordered UPS to file the Request for Dismissal within 10 court days. On March 07, 2024, the Court dismissed UPS with prejudice.

On

March 12, 2027, the Court amended the request for dismissal to reflect a file stamp date of March 07, 2024.

As of

May 21, 2024, the case was dismissed without prejudice under Code of Civil Procedure section 581(b)(3) (dismissal by the court, without prejudice, when no party appears for trial following 30 days' notice of time and place of trial) as there were no appearances for either side nor any communication with the Court as to why there are no appearances on the date of the jury trial.

On May

27, 2026, Plaintiff filed this Motion to Reopen and Vacate Dismissal (the "Motion"). On July 17, 2026, Plaintiff filed an amended Motion.

On July

29, 2026, UPS filed its Opposition.

DISCUSSION

Plaintiff

seeks to reopen this action and vacate the dismissal of UPS. Plaintiff brings this motion under Code of Civil Procedure section 473(d). (See Mtn. at header.) Section 437(d) provides as follows:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

Section 437(d) does not authorize the Court to reopen and vacate the dismissal (1) against UPS after a dismissal with prejudice stemming from a Motion for Terminating Sanctions; and (2) of the case as a whole due to failure to prosecute.

Plaintiff relies in part on Rule 11(b) and 11(c) of the Federal Rules of Civil Procedure to support the motion, but those provision are not binding on this Court. (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 239–240 [“As a general rule, California courts are not bound by the federal rules of procedure . . .”].)

The California authorities on which Plaintiff relies are not more availing. The Court has discussed Code Civ. Proc. § 473(d), above. Section 581 of the Code of Civil Procedure, cited by Plaintiff, concerns dismissal of the action or complaint by parties or the courts. Section 1008 of the Code of Civil Procedure authorizes a party to file a motion for reconsideration of a court ruling, but the motion must be filed no more than 10 days after written entry of the order. Plaintiff’s motion was filed far beyond that deadline.

No authority has been cited by Plaintiff for the Court to reopen this case and vacate UPS’ dismissal.

Conclusion

Plaintiff
Richard Harris’ Motion to Reopen and Vacate Dismissal is denied.

Date: 08/11/2026 _____

William
E. Weinberger

Judge,
Los Angeles Superior Court